



CHAPTER 8

An Act to consolidate certain enactments relating to the slaughter of animals. [18th December, 1958]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subject to the provisions of this section, no animal to which this section applies shall, in a slaughterhouse or knacker's yard, be slaughtered otherwise than instantaneously by means of a mechanically-operated instrument in proper repair unless—

Provisions as to slaughter of animals in slaughterhouses and knackers' yards.

- (a) by stunning, effected by means of a mechanically-operated instrument or an instrument for stunning by means of electricity, being in either case an instrument in proper repair, it is instantaneously rendered insensible to pain until death supervenes; or
- (b) by such other means as may, by regulations made by the Minister after consultation with such organisations as appear to him to represent the interests concerned, be authorised for use in the case of all animals to which this section applies, or a class of such animals to which the animal slaughtered belongs, and in all slaughterhouses or knackers' yards or slaughterhouses or knackers' yards of a class to which belongs the slaughterhouse or knacker's yard in which the animal is slaughtered, it is rendered insensible to pain until death supervenes, and there are complied with such conditions (if any) as may, by regulations so made, be expressed to be applicable to the use of those means in the case of all animals to which this section applies or such a class of animals as aforesaid and in all slaughterhouses or knackers' yards or such a class of slaughterhouses or knackers' yards as aforesaid.

(2) Regulations under this section may make such incidental or consequential provision as may appear to the Minister to be necessary or expedient for the purposes of the regulations, including, in particular, in a case where a condition expressed to be applicable to the use of any means of rendering an animal insensible to pain consists in the giving of approval to any matter by a local authority, provision for securing a right of appeal to a magistrates' court against a withholding or withdrawal of approval.

(3) Subsection (1) of this section shall not apply to the slaughter, without the infliction of unnecessary suffering, of an animal—

(a) by the Jewish method for the food of Jews and by a Jew duly licensed for the purpose by the Rabbinical Commission referred to in the First Schedule to this Act; or

(b) by the Mohammedan method for the food of Mohammedans and by a Mohammedan.

(4) This section applies to horses, cattle, sheep, swine and goats.

Provisions as to slaughter of certain swine elsewhere than in slaughterhouses or knackers' yards.

2.—(1) Subject to the provisions of this section, no swine exceeding twelve weeks in age shall, elsewhere than in a slaughterhouse or knacker's yard, be slaughtered otherwise than instantaneously by means of a mechanically-operated instrument in proper repair unless by stunning, effected by means of a mechanically-operated instrument or an instrument for stunning by means of electricity, being in either case an instrument in proper repair, it is instantaneously rendered insensible to pain until death supervenes.

(2) The foregoing subsection shall not apply to the slaughter of swine at a laboratory, research station or similar institution if the slaughtering is done for the purposes of the diagnosis of disease or for the purposes of research in connection with the arts of veterinary surgery or medicine.

Licensing of slaughtermen.

3.—(1) No animal to which section one of this Act applies shall be slaughtered or stunned in a slaughterhouse or knacker's yard by any person except in accordance with a licence granted by a local authority and in force under this section:

Provided that this subsection shall not apply with respect to the slaughter, under the Diseases of Animals Act, 1950, of an animal by an officer of, or person employed by, the Minister.

(2) Any licence under this section—

(a) shall specify—

(i) the kinds of animals which may be slaughtered or stunned by the holder of the licence ; and

(ii) the types of instruments which may be used by him for slaughtering or stunning any such animal ; and

(b) may, in such cases as may be prescribed by regulations under this section, be granted or renewed subject to a condition prohibiting the slaughter of any animal in pursuance of the licence except under the supervision of the holder of a licence in force under this section which is not subject to a like condition :

Provided that paragraph (a) of this subsection shall not apply to a licence granted for the purposes of the slaughter of animals by the Jewish method for the food of Jews or the Mohammedan method for the food of Mohammedans.

(3) A licence under this section—

(a) shall be in force for such period not exceeding one year as may be specified therein and may be renewed from time to time for a like period at the discretion of the authority by whom it was granted ; and

(b) except where it authorises the holder to slaughter or stun horses (whether or not it also authorises him to slaughter or stun other animals), shall be in force not only in the district of the authority by whom it was granted but also in the district of any other local authority.

(4) The Minister may make regulations for prescribing qualifications for holding licences, or licences of any class, under this section, and for prohibiting the grant or renewal of such licences to persons not having the prescribed qualifications ; and a licence under this section shall not be granted by a local authority except to a person who has attained the age of eighteen years and is, in their opinion, a fit and proper person to hold such a licence.

(5) A local authority may refuse an application for the grant or renewal of a licence under this section if the applicant has failed to comply with any condition of such a licence previously granted to him by that or any other local authority or has been convicted of an offence under—

(a) this Act or any of the enactments repealed thereby ;

(b) the Slaughter of Animals (Scotland) Acts, 1928 to 1954 ;

(c) the Protection of Animals Act, 1911, or the Protection of Animals (Scotland) Act, 1912 ; or

- (d) any regulations made under this Act, or any order made under section twenty of the Diseases of Animals Act, 1950, regulating the transport of animals.
- (6) The local authority by whom a licence under this section was granted may revoke it—
- (a) if they are satisfied that the holder is no longer a fit and proper person to hold it; or
 - (b) if by virtue of the last foregoing subsection they could refuse an application for its renewal.
- (7) A local authority may at any time suspend for such period as they may determine the operation within their district of any licence under this section in force therein, and in particular of any such licence held by a person to whom by virtue of subsection (5) of this section they could refuse the grant or renewal of such a licence.
- (8) Any person aggrieved by the refusal of a local authority to grant or renew a licence under this section, or by the revocation, or the suspension of the operation, of such a licence, may, within one month of intimation of the refusal, revocation or suspension, appeal against it to a magistrates' court.
- (9) Any person applying to a local authority for a licence under this section shall in his application state—
- (a) whether he holds such a licence granted by any other (and, if so, which) local authority;
 - (b) whether he has been refused such a licence or had such a licence revoked or the operation thereof suspended by any other (and, if so, which) local authority; and
 - (c) whether he has any similar application pending before any other (and, if so, which) local authority.
- (10) A local authority may charge a fee not exceeding two shillings for the grant of a licence under this section and a fee not exceeding one shilling for the renewal of such a licence.
- (11) A licence granted by any local authority under this section shall be produced on demand for inspection by any other local authority within whose district the licence is in force.

Regulations
for securing
humane
conditions of
slaughter in
slaughter-
houses, &c.

4.—(1) The Minister may, after consultation with such organisations as appear to him to represent the interests concerned, make such regulations as appear to him to be expedient for securing humane conditions and practices in connection with the slaughter, in slaughterhouses and knackers' yards, of animals to which section one of this Act applies; and such regulations may in particular—

- (a) prescribe requirements as to the construction, lay-out and equipment of premises used as slaughterhouses or knackers' yards;

- (b) prescribe conditions to be observed in connection with the confinement and treatment of such animals as aforesaid while awaiting slaughter in such premises, and in connection with the slaughter therein of such animals as aforesaid.

(2) Regulations under this section may make different provision in relation to different kinds of animals and in relation to premises used for different purposes in connection with the slaughter of animals and may—

- (a) so far as they are made for the purposes mentioned in paragraph (a) of the foregoing subsection, be made to apply subject to exceptions or modifications in relation to premises constructed or adapted for use before the date on which the regulations come into force ;
- (b) in any case be made without applying, or applying subject to exceptions or modifications, in relation to slaughterhouses forming part of an imported animals' wharf or approved landing place for the purposes of the Diseases of Animals Act, 1950, or applying (with or without exceptions or modifications) only in relation to any such slaughterhouse of that description as may be specified in the regulations ;
- (c) provide, subject to such limitations and safeguards, if any, as may be specified in the regulations, for the appropriate authority to grant in relation to particular premises, either unconditionally or subject to conditions, exemption from the operation of specific provisions of those regulations where it appears to the authority that compliance with those provisions cannot for the time being reasonably be required with respect to the premises or any activities carried on thereat ;
- (d) provide for the regulations to come into force on different days fixed by, or by an order to be made by statutory instrument under, the regulations in respect of different classes or descriptions of premises and different areas, and for different provisions to come into force on different days ;

and in paragraph (c) of this subsection the expression "appropriate authority", except in relation to a slaughterhouse provided by a local authority, means a local authority, and in relation to a slaughterhouse so provided means the Minister.

(3) Regulations under this section may make provision corresponding (with or without modifications) with any of the provisions in force immediately before the commencement of the Slaughter of Animals (Amendment) Act, 1954, under subsection (1) of section five of the Protection of Animals Act, 1911, section four of the Slaughter of Animals Act, 1933, or

section one of the Slaughter of Animals (Amendment) Act, 1951 ; and, without prejudice to the foregoing provision, regulations so made in relation to horses shall in particular make provision with respect to the matters specified in the Second Schedule to this Act.

(4) Regulations under this section may prescribe penalties for offences against the regulations, not exceeding those specified in section five of this Act, and may impose on the occupiers of premises to which the regulations apply responsibility for compliance with any of the provisions of the regulations ; and subsection (3) of the said section five shall apply in relation to any contravention of the regulations as it applies in relation to a contravention of section one, two or three of this Act.

Penalties.

5.—(1) Subject to the provisions of this section, any person who slaughters or stuns, or attempts to slaughter or stun, any animal in contravention of section one, two or three of this Act, or knowingly makes a false statement for the purpose of obtaining a licence under the said section three, shall be guilty of an offence and liable on summary conviction to a fine not exceeding fifty pounds, or to imprisonment for a term not exceeding three months, or to both.

(2) A person shall not be guilty of an offence in respect of any such contravention as aforesaid if he proves that by reason of an accident or other emergency the contravention was necessary for preventing physical injury or suffering to any person or animal.

(3) Where a person convicted of an offence in respect of any such contravention as aforesaid (including a person so convicted by virtue of section thirty-five of the Magistrates' Courts Act, 1952) is the holder of a licence granted under Part IV of the Food and Drugs Act, 1955, in respect of the premises where the offence was committed, the court may, in addition to any other penalty, cancel the licence.

Powers of certain local authorities to employ slaughtermen.

6. A local authority who have provided or established a slaughterhouse may, if they think fit, employ persons to slaughter or stun, in accordance with the provisions of this Act, animals to which section one of this Act applies.

Duty of local authorities to execute and enforce this Act.

7. It shall be the duty of every local authority to execute and enforce within their district the provisions of this Act and of any regulations made thereunder.

Powers of certain officers to enter slaughter-houses and knackers' yards.

8.—(1) Subject to the provisions of this section, at any time when business is, or appears to be, in progress, or is usually carried on, in a slaughterhouse or knacker's yard, any officer of the Minister, or any such person as the following appointed by the local authority within whose district the slaughterhouse or

knacker's yard is situate, namely, a medical officer of health, a public health inspector or a veterinary surgeon, may enter it for the purpose of ascertaining whether there is or has been any contravention of this Act or any enactment repealed thereby or of any regulations under this Act or any such enactment.

(2) A person who obstructs a person in the exercise of his powers under the foregoing subsection shall be guilty of an offence and liable on summary conviction to a fine not exceeding five pounds.

(3) Subsection (1) of this section shall not authorise entry into a slaughterhouse or knacker's yard which for the time being is, or is comprised in, an infected place within the meaning of the Diseases of Animals Act, 1950.

9. Any power to make regulations under this Act shall be exercisable by statutory instrument which shall be subject to annulment in pursuance of a resolution of either House of Parliament. Parliamentary control of regulations.

10. In this Act the following expressions have the meanings hereby assigned to them respectively, that is to say:— Interpretation.

“contravention”, in relation to a provision of this Act or of any regulations thereunder, includes a failure to comply with that provision;

“horse” includes ass and mule;

“knacker's yard” means any building, premises or place used in connection with the business of killing animals whose flesh is not intended for sale for human consumption;

“local authority” means—

(a) for the purposes of the application of this Act elsewhere than to the administrative county of London, the council of a county borough, non-county borough, urban district or rural district;

(b) for the purposes of the application of this Act to the administrative county of London, the council of a metropolitan borough or the Common Council of the City of London;

“the Minister” means the Minister of Agriculture, Fisheries and Food;

“slaughterhouse” means any building, premises or place used in connection with the business of killing animals whose flesh is intended for sale for human consumption.

**Provisions
relating to
London.**

11.—(1) In its application to the administrative county of London, subsection (3) of section five of this Act shall have effect as if for the reference to Part IV of the Food and Drugs Act, 1955, there were substituted a reference to sections one hundred and forty-four and one hundred and forty-five of the Public Health (London) Act, 1936.

(2) For the purposes of this Act the Metropolitan Cattle Market shall be deemed to be within the City of London and not to be within the metropolitan borough of Islington.

(3) The council of a metropolitan borough and the Common Council of the City of London may make such charges as they consider reasonable for the services of persons employed by them by virtue of section six of this Act.

**Repeals and
savings.**

12.—(1) The enactments mentioned in the first and second columns of the Third Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

(2) In so far as any regulation made, licence granted or other thing done under any enactment repealed by this Act could have been made, granted or done under a corresponding provision of this Act, it shall not be invalidated by the repeal effected by the foregoing subsection but shall have effect as if it had been made, granted or done under that corresponding provision.

(3) Any document referring to any Act or enactment repealed by this Act shall, unless the context otherwise requires, be construed as referring to this Act or the corresponding enactment therein.

(4) The mention of particular matters in this section shall be without prejudice to the general application of section thirty-eight of the Interpretation Act, 1889, with regard to the effect of repeals.

**Short title,
extent and
commence-
ment.**

13.—(1) This Act may be cited as the Slaughter of Animals Act, 1958.

(2) This Act shall not extend to Scotland or Northern Ireland.

(3) This Act shall come into operation at the expiration of the period of one month beginning with the date of its passing.

SCHEDULES

FIRST SCHEDULE

Section 1.

PROVISIONS RELATING TO THE RABBINICAL COMMISSION
FOR THE LICENSING OF SHOCHETIM*Membership*

1. The Rabbinical Commission for the licensing of Shochetim shall consist of a permanent chairman and nine other members.
2. The Chief Rabbi of the United Hebrew Congregations of the British Empire shall, by virtue of his office, be the permanent chairman of the said Commission.
3. Of the members of the said Commission other than the permanent chairman—
 - (a) one, who shall be a vice-chairman, shall be appointed by the Spanish and Portuguese Synagogue (London);
 - (b) three shall be appointed by the Beth Din appointed by the United Synagogue (London);
 - (c) two shall be appointed by the Federation of Synagogues (London);
 - (d) one shall be appointed by the Union of Orthodox Hebrew Congregations (London); and
 - (e) two shall be appointed by the president for the time being of the London committee of deputies of British Jews to represent provincial congregations.

Supplementary provisions

4. The functions of the said Commission shall be exercisable notwithstanding any vacancy amongst the members thereof.
5. The quorum of the said Commission shall be four.

SECOND SCHEDULE

Section 4.

PARTICULAR MATTERS TO BE DEALT WITH BY REGULATIONS
UNDER S. 4 RELATING TO HORSES

1. Construction, equipment and lay-out of lairages, including provision of racks for fodder and supply of water.
2. Feeding and watering of horses pending slaughter.
3. Construction, equipment and lay-out of premises, rooms or compartments in which the slaughter takes place, and conditions to be observed therein at the time of slaughter.
4. Disposal of blood, offal and refuse.
5. Notices to be given and returns to be made to local authorities by persons carrying on business as slaughterers of horses, and records to be kept by such persons.

Section 12.

THIRD SCHEDULE

ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
23 & 24 Geo. 5. c. 39.	The Slaughter of Animals Act, 1933.	The whole Act.
1 & 2 Eliz. 2. c. 27.	The Slaughter of Animals (Pigs) Act, 1953.	The whole Act.
2 & 3 Eliz. 2 c. 59.	The Slaughter of Animals (Amendment) Act, 1954.	Sections two to nine. In section ten, subsection (2). In section eleven, subsection (2). In section twelve, subsection (2). The First Schedule. In the Second Schedule, in Part I, the entries relating to the Slaughter of Animals Act, 1933.
6 & 7 Eliz. 2. c. 70.	The Slaughterhouses Act, 1958.	Section eight. In section nine, in subsection (1), the words "or by virtue of". In section thirteen, the proviso to subsection (1). The Second Schedule.

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Table of Statutes referred to in this Act

Short Title	Session and Chapter
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Protection of Animals Act, 1911	1 & 2 Geo. 5. c. 27.
Protection of Animals (Scotland) Act, 1912	2 & 3 Geo. 5. c. 14.
Slaughter of Animals Act, 1933	23 & 24 Geo. 5. c. 39.
Public Health (London) Act, 1936	26 Geo. 5. & 1 Edw. 8. c. 50.
Diseases of Animals Act, 1950	14 Geo. 6. c. 36.
Slaughter of Animals (Amendment) Act, 1951	14 & 15 Geo. 6. c. 49.
Magistrates' Courts Act, 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 55.
Slaughter of Animals (Amendment) Act, 1954	2 & 3 Eliz. 2. c. 59.
Food and Drugs Act, 1955	4 & 5 Eliz. 2. c. 16.

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